OFFER LETTER

Date: 2025-03-14

Name: Thread Miller

Address: 1, Clother Close, Nashville.

Re: N100000(NAIRA ONLY) LOAN

Further to your request, we are pleased to inform you that the facility has been approved under the following terms and conditions:

Facility Type: SMB Loan

Amount: N100000 (Naira only)

Tenor: 2 months i.e. 60 days

Purpose: Business Enlargement

Interest rate: 4.5% per month i.e. 4500 (naira only) as interest.

Processing fee: Upfront payment of 100 (naira only)

Security:

(a) Personal guarantee of Wheel Miller

(b) Personal guarantee of Wool Miller

(c) Vehicle Documents

(d) C of O

Repayment mode: Payment of Interest of both interest and principal will be paid monthly into the following account.

Account Name: Capitalwise Dynamic Pay Ltd
Account Number: XXXXXXXXXX
Bank: FCMB

Repayment Plan

Repayment	Repayment Date	Amount
Payment 1	2025-04-07	50416.67
Payment 2	2025-05-07	50416.67
Payment 3	2025-05-07	50416.67
Payment 4	2025-05-07	50416.67
Payment 5	2025-05-07	50416.67
Payment 6	2025-05-07	50416.67
Payment 7	2025-05-07	50416.67

TERMS AND CONDITIONS

CONDITIONS PRECEDENT TO DRAW DOWN

1. Submission of request letter for the facility
2. Submission of duly executed offer letter in acceptance of the facility
3. Submission of duly executed credit facility agreement.
4. Submission of Personal Guarantee/collateral and cheque leaf
5. Submission of letter of commitment to repay facility.

TRANSACTION DYNAMICS

1. The borrower/business/company submits a signed offer letter, credit facility agreement, board resolution (where necessary) and any other required documentation
2. Processing fee/Management fee/Insurance fee or any other upfront fee to be paid into the advised account upon approval of loan and receipt of all signed documents.
3. Repayment Plan/Pattern to be adhered to for loan repayment

OTHER CONDITIONS

Notwithstanding anything herein aforementioned, the facility or balance thereof and other monies herein covenanted to be paid whether by way of interest or otherwise shall become immediately due and payable on the occurrence of any of the following events:

1. This Offer letter shall not be binding unless it is unconditionally accepted and returned to the Lender (Capitalwise) within 5 days from the date hereof. Upon acceptance, it shall remain valid for 30 days, after which it is deemed to have elapsed if the facility is not utilized.
2. Without prejudice to the foregoing, Capitalwise reserves the right to vary, alter, or amend any of the terms and conditions of the facility as and when the need arises.
3. The Borrower will bear all expenses incurred in arranging, documenting, and enforcing payments under the facility, including all professional, valuation, legal fees, monitoring, taxes, and commissions (if any), and the Lender (Capitalwise) shall advise the account to fund such expenses immediately.
4. The Borrower acknowledges that the Lender is a financial institution regulated by extant laws of the Federation of Nigeria.
5. The Borrower hereby agrees to indemnify the Lender against any loss, howsoever occurring, that the Lender may incur due to any misrepresentation, irregularity or incompleteness in the information in any document submitted to the Lender.

EVENTS OF DEFAULT

The occurrence of any of the following events shall cause all outstanding under the facility to be immediately repayable.

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1. If the Borrower fails to pay monthly interest as and when due or the Borrower fails to pay the outstanding principal sum at maturity of the facility
2. If the Borrower fails to settle, when due, any outstanding amount owed to and advised by the Lender; or
3. If the Borrower stops repayment, and/or if the Borrower proposes or declares any moratorium on the Borrower's debt in respect of the facility; or
4. If a distress or execution is levied upon or issued against the Borrower's Collateral Assets and is not discharged within five (5) days or an encumbrancer takes possession of or a Receiver is appointed over all or any part of the Borrower's undertaking and asset; or
5. If the Borrower ceases or threatens to cease to carry on business or if in the opinion of the Lender, there shall be any material adverse change whatsoever in the business, assets, financial condition, and operation of the Borrower; or
6. If there should in the opinion of the Lender a material adverse change in the financial condition of the Borrower; or
7. If there is a material change in the Board composition or shareholding structure of the Borrower; or
8. If the Borrower is unable to pay any of its debts within the meaning of Section 572 of the Companies and Allied Matters Act, 2020 (or any enactment amending or repealing same) to any other party; or
9. If the Borrower does not comply with Environmental and Social (E&S) Laws

A. Covenants

The Borrower undertakes that during the validity of the facility, while there are any outstanding thereon, it shall:

1. Provide the Lender annually with a copy of its audited accounts and other financial information. (applicable for Business/Enterprise Loans). Bank statement, sales book/ledger, staff strength and statement of Networth (Applicable to SMBs/Individuals)
2. Not create or allow to exist any charge, lien or other encumbrance over its assets or undertaking without the Lender's prior written consent.
3. Not to sell, transfer or otherwise dispose of its assets or undertaking without the Lender's prior written consent.

4. Not, without the Lender's prior written consent, make any offer of employment or engage either directly or indirectly any staff of the Lender that is involved in providing advisory or relationship management services in respect of the facility during the tenor of the facility or within twelve (12) months of the liquidation/repayment of the facility.
5. At any time and from time to time, upon the written request of the financial institution, promptly and duly execute and deliver such further instruments and documents and take such further actions as the financial institution reasonably may request for the purposes of obtaining or preserving the full benefits of this facility and the rights and powers herein granted .

B. Representations and Warranties

The Borrower represents and warrants to the Lender as follows:

1. The Borrower has the power and authority to take up this facility upon the terms and conditions outlined and to observe and perform its obligations hereunder
2. That all information relating to the Borrower or otherwise relevant to matters contemplated herein as supplied by the Borrower to the Lender is true and correct in all material respects.
3. There is no pending or threatened action, litigation, arbitration or administrative proceedings before any court, arbitral body or agency which may materially adversely affect the Borrower's financial condition, business or affect the Borrower as a going concern and impact the Borrower's ability to repay the loan or which may affect the validity or enforceability of this contract. However, if there are pending litigations, the Borrower shall so disclose.
4. The Borrower shall not without the consent of the Lender in writing do or attempt to do any of the following:

- Alter its Memorandum and Article of Association in any manner as to affect the interest of the Lender and/or
- Subscribe for purchase or otherwise acquire any other company's debenture, mortgage or other security or obligation.

C. Default Interest

1. If the Borrower fails to pay any amount payable by it under this facility on its due date, interest shall accrue on the overdue amount from the due date up to the date of actual payment at a rate which, subject to paragraph (c) below, is 10% per month in addition to the rate which would have been payable if the overdue amount had, during the period of non-payment, constituted a Loan in the currency of the overdue amount for successive Interest Periods.
2. The Lender shall notify the Borrower within 3 days from the first day of default that a default charge will be applied to the Loan 7 days from the date the obligation becomes due.

3. If any overdue amount consists of all or part of a Loan which became due on a day which was not the last day of an Interest Period relating to that Loan:

- The first Interest Period for that overdue amount shall have a duration equal to the unexpired portion of the current Interest Period relating to that Loan; and
- The rate of interest applying to the overdue amount during that first Interest Period shall be 5.00% per month in addition to the rate which would have applied if the overdue amount had not become due
- Default interest (if unpaid) arising on an overdue amount shall be compounded with the overdue amount at the end of each Interest Period applicable to that overdue amount and will remain immediately due and payable.
- In case of default and we have to recover our funds by any means necessary, the Customer is liable for all expenses incurred during recovery.

D. Facility Review

Capitalwise policy reviews facilities from time to time in light of changing market conditions and/or the Borrower's financial conditions. Capitalwise reserves the right to modify, vary, or cancel at any time, with adequate notice to the Company, the nature and amount of the facility, the underlying terms, conditions and security arrangement. Therefore, notwithstanding anything in this Offer to the contrary, this facility is regarded as payable at any time at the option of the Lender.

E. Voluntary Prepayment

The Borrower may repay the whole or any part of the loan upon giving the Lender 7 (seven) Business days prior notice. Any amount prepaid may not be redrawn (and shall be applied against scheduled repayments in (inverse order of maturity). Any amount prepaid shall include interest and any pro-rata fees that become due and payable on the immediately succeeding owing date for such fees. However, the Borrower will be charged a default fee if the Borrower pays off the loan before maturity.

F. Consent to Disclose Credit Information to Credit Bureaux

- The Borrower hereby consents that the Lender may collect, use and disclose our transaction/ information to the appointed Credit Bureau and that the Credit Bureau may use the information for any approved business purposes as may from time to time be prescribed by the Central Bank of Nigeria and/ or any relevant statute.
- The Borrower also authorises the Lender to conduct previous/current credit information checks on us/me from other financial institutions through any relevant means/ agency.

Right of Set-Off

The Borrower covenants that in case of default, in addition to any general lien or similar right to which Capitalwise as a Lender may be entitled by law, the Lender may at any time combine or consolidate all or any of the Borrower's Collateral with and liabilities to the Lender, set off towards the satisfaction of the Borrower's liabilities to the Lender and notice of the set-off shall thereafter be given to the Borrower.

The Borrower covenants to repay the loan as and when due. In the event that the Borrower fails to repay the loan as agreed and the loan becomes delinquent, the Lender shall have the right to report the delinquent loan to the regulators through the provided framework or by any other means and request the regulator to exercise its regulatory power to direct all other financial institutions under its regulatory purview to set off the Borrower's indebtedness.

The Borrower covenants and warrants that the Lender shall have the power to set off its indebtedness under this loan agreement against the collateral assets provided.

The Borrower hereby waives any right of confidentiality, whether arising under common law or statute or in any other manner whatsoever and irrevocably agrees that it shall not argue to the contrary before any court of law, tribunal, administrative authority or any other body acting in any judicial or quasi-judicial capacity.

Lien

The Borrower hereby grants the Lender an irrevocable and unconditional right of lien over its assets. The lien shall remain in force as long as any part of the facility is outstanding.

Yours faithfully,
For: Capitalwise Dynamic Pay Limited

Authority Signatory

Please indicate your acceptance of these terms and conditions by executing this offer letter in the space below:

I (We) the undersigned, hereby accept the terms and conditions contained in this offer letter:

Name:……………………………………..

Address:……………………………......

Signature:………………………………

Date:……………………………………....

Witnessed By:

Name:………………………………………. .

Address:…………………………………..

Relationship:……………………………

Signature:………………………………..

Date:…………………………………………....